



EMPLOYMENT TRIBUNALS

Claimant: William Worsley

Respondent: Tysers

JUDGMENT

The complaint that the claimant was unfairly dismissed is struck out.

REASONS

1. The claimant claims that he was unfairly dismissed.
2. Section 108 of the Employment Rights Act 1996 requires a claimant to have not less than two years' service to make an unfair dismissal complaint. The claimant was employed by the respondent for less than two years and none of the specific circumstances in respect of which there is no requirement for two years' service apply to the claim. Therefore, the claimant is not entitled to bring such a complaint.
3. The claimant, having been given the opportunity to do so, has not explained why the unfair dismissal complaint should not be struck out. A strike out warning was sent to the claimant on 7 August 2025 in which he was ordered to provide written reasons, by 21 August 2025, to explain why the claim should not be struck out. The claimant replied on 8 August 2025 in the following terms "I was dismissed without due process".
4. Accordingly, the complaint is struck out.

Approved by:

Employment Judge Khan

28.09.25

JUDGMENT SENT TO THE PARTIES ON

7 November 2025

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FOR THE TRIBUNAL OFFICE